

UTT Chapter 14 Assignment

Hello there!

I have to tell you about the festival on campus yesterday. Several of the engineering groups host an event every year where students can get free food, compete on obstacle courses, and watch movies. Apparently, it is a promotion for exercise and mental health awareness. It was awesome! Mark and I battled each other in the gladiator games. I had a blast! Oh, I almost forgot to mention that they had a petting zoo of sorts. Some local farmers brought lambs and horses, and a few animal shelters brought puppies and kittens for the college students to play with. Sarah and Paige spent most of their time with the animals while Mark and I were busy running through the obstacles. I needed a fun-filled day with midterms looming in the near future!

Speaking of midterms and classes, my Political Theory course has been discussing the foundations of governmental forms and the histories behind many of them. We have been reading a good deal of Locke, Hobbes, Montesquieu, and Rousseau. The theme this week has been on the foundation of law. I can't believe how many different theories there are for explaining what law is and why it exists! I hadn't really thought about it much. As part of the class, students are required to give a presentation on one of these theories, and Muhammad presented yesterday. His talk was about the Islamic perspective on law and the value of shariah law.

After class, Muhammad, Sarah, and I grabbed coffee to talk more about it. Muhammad explained that Islamic law is divine law and is coeternal with Allah. He said there are a great deal of similarities between shariah and the laws in Christianity. Sarah explained her view of law was based on something called positivism. According to her, natural law cannot exist because God does not exist. As she sees it, laws are only man-made constructions that emerged from the cultural, economic, political, and social institutions of each society. I guess I was quiet throughout the conversation because Muhammad and Sarah asked me what I thought about law and its construction. To be honest, I didn't really know what to say. I mumbled something about obeying God, but it didn't seem to satisfy them. Muhammad pointed out how we both agree on divine law, but I feel like there must be something different between Christian and Islamic views on law.

I left the conversation a bit befuddled. Maybe you can help me. After listening to Sarah speak, I would like to know more about her worldview. **What is the basis of law in Secularist thought?** I am assuming that Mark would agree with her, but I am not sure. **How does Marxism view law?** Paige always describes Postmodernism as the rejection of metanarratives and absolute truth. I bet that shapes what her view of the role of law in society. **What is the foundation of law in Postmodernism?** Perhaps most confusing for me is the relationship between Christianity and Islam. **What are the differences between Islam and Christianity's view of law?**

Thank you so much for your help. I don't know what I would do without you!
Later!

-Doug

Doug brought up four different questions; below is a rough outline of possible responses:

1. What is the basis of law in Secularist thought?

Most Secularists hold to the theory of **legal positivism**—the belief that laws are merely rules invented by human authorities and that there is no inherent or necessary connection between law and morality. Because they deny the existence of an objective morality, they do not believe that laws are in any way connected with ethics. As the Secularist sees it, both morality and laws are fluid, i.e. they develop and change over time. Morals aren't unchanging brute facts of reality. Instead, morality came about as type of social convention to help human beings get along with one another. Similarly, social authorities constructed laws for much the same purpose. [14.4]

2. How does Marxism view law?

According to Marxism, law based on divine revelation is merely a ploy used by the bourgeoisie to protect their social and economic status. Like Secularists, Marxists are legal positivists. They deny that laws have any connection with an objective or divine morality and instead believe that those in positions of authority are the ones who ultimately construct laws. Until the working class rejects the notion of divine law, society won't progress toward a communist utopia. This is why Marxists push for a proletariat revolution. After this revolution, repressive bourgeoisie laws will be abolished and those who represent the working class (i.e., communist party officials) will construct a new set of laws. **Proletariat law** is a system of laws shaped by communist party officials that are intended to promote the interests of the working class over the bourgeoisie based on working class values, which communists see as superior. To the Marxist, laws are only necessary because of the present inequality that exists between the economic classes. When communism has been brought to fruition, economic disparity will disappear and along with it the need for law and government. [14.5]

3. What is the foundation of law in Postmodernism?

Because Postmodernists do not recognize objective truth, they apply a different perspective to law. **Critical legal studies** is the practice of deconstructing laws in order to discover their supposed subjective meaning and biased intent. Law, therefore, is limited to the perspective a person brings to a situation. Postmodernists declaim logic and dispassionate reasoning because they are viewed as tools of a white male metanarrative. This then frames law, not as a means of delivering justice but rather as a means of obtaining political power and uncovering various forms of oppression. [14.6]

4. What are the differences between Islam and Christianity's view of law?

For Islam, **shariah law** is seen as divine law that is coeternal with Allah, encompassing five categories: acts that are commanded, forbidden, disapproved, recommended, and indifferent. It is understood by studying the Quran, the life of Muhammad, *ijma*, and analogical reasoning. Because Islam does not share the same view of sin nature as Christianity, the Islamic model of government does not provide a system of checks and balances; rather it is authoritarian and demands punishment (often death or severe mutilation) for those who reject Islam.

Similarly, Christians believe in the existence of a divine law. The difference lies in both the nature and character of Yahweh, as well as the nature of man. According to Christianity, we are creatures fashioned in God's image, fallen from grace, and in need of redemption. Christians believe that human beings are capable of discovering God's laws through both nature and his revelation by **natural law**—the belief that laws are rules based upon an internal code of morality possessed by all people. The goal of Christian law is not to force people to convert to Christianity but to stabilize society by ensuring that the innocent are protected and the guilty are punished. [14.8–14.9]